

		Here, the Defendant cites to no evidence and does not direct the court to any undisputed material fact in support of its argument. Indeed, there is no separately identified Issue relating to this cause of action in the separate statement <i>at all, let alone reference to evidence or lack thereof.</i> So, while this cause of action may not be viable, Defendant failed to sustain its burden; and thus, the burden does not shift to Plaintiff to create a triable issue of material fact. Accordingly, based on applicable law and as set forth herein, the Motion is DENIED. (ROA 465) <i>Plaintiff's Objections</i> 1-6 are sustained. Plaintiff to give notice.
9.	30-2024-01416847 Qui vs. Catherine Frandsen & Co. Inc.	1. Motion for Judgment on the Pleadings 2. Motion for Leave to File Amended Complaint 3. Motion to Strike Portions of Complaint <u>Motion for Leave to File Amended Complaint</u> Plaintiffs Tina Qiu, Angelina Liu, Rose Wang and Amy Xiao's Motion for Leave to File a Third Amended Complaint is GRANTED pursuant to Code of Civil Procedure section 473. "[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (<i>Melican v. Regents of University of California</i> (2007) 151 Cal.App.4th 168, 175.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings." (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (<i>Ibid.</i>) While there is authority which indicates that "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may – of itself – be a valid reason for denial" (<i>Eng v. Brown</i> (2018) 21 Cal.App.5th 675, 707), a great deal of authority demonstrates that "[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Additionally, "[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Berman v. Bromberg</i> (1997) 56 Cal.App.4th 936, 945; see also <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Here, Plaintiffs seek leave to amend to identify two Doe Defendants by name (although Doe Amendments have already been filed, and both additional Defendants are thus already named parties); to add related causes of action for unsafe working conditions, FEHA retaliation, unreimbursed business expenses, inaccurate wage statements, waiting time penalties, and unfair competition under Business and Professions Code section 17200; and to clarify and expand various allegations. Plaintiffs' counsel has supplied a declaration explaining that the facts giving rise to the proposed amendments were discovered and/or clarified after the filing of the Second Amended Complaint through investigation, review of case materials, written discovery, deposition testimony, and further analysis of Plaintiffs' wage-and-hour, FEHA, tort, retaliation, ratification, and damages theories. (Elorm Decl. ¶ 14.) Further, Plaintiffs seek leave to amend now because Defendant has

filed a motion for judgment on the pleadings and refused to stipulate to an amendment. (Elorm Decl. ¶ 16.)

In opposition, Defendant contends that it will be prejudiced by the amendment because the case has been pending for nearly two years, and Plaintiffs now seek to add two new defendants, seven additional causes of action, and additional factual allegations. Defendant contends that allowing the amendment will result in Defendant filing a demurrer, and possibly result in delaying the trial date; and Defendant will have to incur further expenses for discovery.

The Court notes that there is a pending motion for judgment on the pleadings to be heard on the same date as this motion. In support of that motion, Defendant's counsel submits a declaration indicating that Plaintiffs filed the Second Amended Complaint on April 8, 2025, and that "[a]lthough Plaintiffs' Second Amended Complaint still included the same deficiencies as the First Amended Complaint, Defendant opted to answer the SAC and preserve its objections in the hope that a lack of motion practice might lead to an early resolution of the case." (ROA 150, Vakhshoury Decl. ¶ 7.) Defendant did not file its motion for judgment on the pleadings until April 2, 2026. (ROA 150.) Thus, Defendant made a calculated decision not to challenge the pleading for nearly a full year. As a result, the case is not yet fully at issue.

Further, having reviewed the proposed Third Amended Complaint, the Court finds that the proposed additional facts, Defendants, and causes of action are so related to the allegations already pled that the additional discovery required should not be excessive. Plaintiffs should be afforded the opportunity to have all of these related grievances heard in one action. Additionally, trial is nearly eight months away, so there should be sufficient time for Defendant to adequately prepare.

Motion for Judgment on the Pleadings & Motion to Strike

In light of this Court's ruling granting Plaintiffs' motion for leave to file a Third Amended Complaint, Defendants' Motion for Judgment on the Pleadings and Motion to Strike Portions of the Second Amended Complaint are **DENIED as MOOT**.

Plaintiffs to give notice.